



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB2257: HOV lane; blood transport vehicles

BIASIUCCI FLOOR AMENDMENT

1. Changes the percentages, *from 65% to 55%*, rather than from 65% to 50%, of monies collected from the numbering of watercraft fees to be distributed into the Watercraft Licensing Fund and *from 35% to 45%*, rather than from 35% to 50%, into the State Lake Improvement Fund (SLIF) and Law Enforcement and Boating Safety Fund (LEBSF).
2. Modifies the distribution of collected monies for the SLIF and LEBSF, from 15% to *10%* for SLIF and from 85% to *90%* for LEBSF.
3. Removes ADOT's reporting requirement on expenditures made from the Watercraft Licensing Fund.
4. Distributes LEBSF monies as follows:
 - a. 49.22% to Mohave County;
 - b. 12.5% to La Paz County;
 - c. 10.45% to Coconino County;
 - d. 9.65% to Maricopa County;
 - e. 9.3% to Yuma County;
 - f. 7.35% to Gila County;
 - g. 1.03% to Apache County; and
 - h. 0.5% to Navajo County.
5. Removes the requirement that, to distribute LEBSF monies to counties, the State Treasurer must use the Arizona Department of Game and Fish (AZGFD) Commission's allocation formula.
6. Eliminates statutorily prescribed items that the AZGFD Commission may use in determining the allocation formula.
7. Makes technical and conforming changes.

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2/24/2026

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BIASIUCCI FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2257
(Reference to TRANSPORTATION & INFRASTRUCTURE S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Section 5-323, Arizona Revised Statutes, is amended to
4 read:

5 5-323. Disposition of fees; annual report

6 [A.] Each month monies received from the registration and
7 infrastructure fees received under this chapter for the numbering of
8 watercraft shall be deposited, pursuant to sections 35-146 and 35-147, in
9 the watercraft licensing fund. Each month, the department shall
10 distribute the monies as follows:

11 1. All revenues collected pursuant to section 5-321, subsection A
12 and section 5-326 shall be allocated as follows:

13 (a) ~~Sixty-five per cent~~ [FIFTY] [FIFTY-FIVE] PERCENT shall be
14 deposited in the watercraft licensing fund. The watercraft licensing fund
15 is to be used by the department for administering and enforcing this
16 chapter, providing an information and education program relating to
17 boating and boating safety and administering any aquatic invasive species
18 program established under this title or title 17. These monies are
19 subject to legislative appropriation.

20 (b) ~~thirty-five per cent~~ [FIFTY] [FORTY-FIVE] PERCENT of such
21 revenues shall be further allocated as follows:

22 (i) ~~[Fifteen] per cent~~ [TEN] PERCENT to the state lake improvement
23 fund to be used as prescribed by section 5-382.

24 (ii) ~~[Eighty-five] per cent~~ [NINETY] PERCENT to the law enforcement
25 and boating safety fund to be used as prescribed by section 5-383.

26 2. All revenues collected from any additional registration fees
27 collected pursuant to section 5-321, subsection ~~e~~ D shall be paid to an
28 account designated by a multi-county water conservation district
29 established under title 48, chapter 22 to be used solely for the lower
30 Colorado river multispecies conservation program and for no other purpose.

1 ~~[B. THE DEPARTMENT SHALL SUBMIT AN ANNUAL REPORT TO THE PRESIDENT~~
2 ~~OF THE SENATE, THE SPEAKER OF THE HOUSE OF REPRESENTATIVES AND THE~~
3 ~~SECRETARY OF STATE ON EXPENDITURES MADE FROM THE WATERCRAFT LICENSING~~
4 ~~FUND.]~~

5 <<Sec. 2. Section 5-383, Arizona Revised Statutes, is amended to
6 read:

7 5-383. Law enforcement and boating safety fund; boating law
8 enforcement, personnel, equipment and training
9 funding to counties

10 A. [★] ~~[THE]~~ law enforcement and boating safety fund is established
11 ~~[that consists]~~ [CONSISTING] of monies distributed to the fund pursuant to
12 sections 5-323, 5-395.01, 5-395.03, 5-396 and 5-397. The monies are
13 subject to legislative appropriation.

14 B. Only a board of supervisors of a county that has a law
15 enforcement and boating safety program that was in existence before July
16 1, 1990 shall be eligible to receive law enforcement and boating safety
17 fund monies. [THE REVENUES ALLOCATED TO THE LAW ENFORCEMENT AND BOATING
18 SAFETY FUND SHALL BE ALLOCATED AS FOLLOWS:

- 19 1. 1.03 PERCENT TO APACHE COUNTY.
- 20 2. 10.45 PERCENT TO COCONINO COUNTY.
- 21 3. 7.35 PERCENT TO GILA COUNTY.
- 22 4. 12.5 PERCENT TO LA PAZ COUNTY.
- 23 5. 9.65 PERCENT TO MARICOPA COUNTY.
- 24 6. 49.22 PERCENT TO MOHAVE COUNTY.
- 25 7. .5 PERCENT TO NAVAJO COUNTY.
- 26 8. 9.3 PERCENT TO YUMA COUNTY.]

27 C. The state treasurer shall administer the fund. ~~[Using an~~
28 ~~allocation formula as determined annually by the commission,]~~ The state
29 treasurer shall distribute monies monthly from the law enforcement and
30 boating safety fund to eligible counties as prescribed in subsection B of
31 this section.

32 ~~[D. In determining the allocation formula, the commission may~~
33 ~~consider the following:~~

- 34 ~~1. The adequacy of existing county boating safety programs that~~
35 ~~include accident investigations.~~
- 36 ~~2. The number of recreational days of use on water within the~~
37 ~~jurisdiction of the counties in areas of administrative authority.~~
- 38 ~~3. The surface acreage of water within the jurisdiction of the~~
39 ~~counties in areas of administrative authority.~~
- 40 ~~4. The county water safety record.~~
- 41 ~~5. The ability of the county to constructively use additional~~
42 ~~monies.~~
- 43 ~~6. The ratio of boating use to water surface within the~~
44 ~~jurisdiction of the counties in areas of administrative authority.~~
- 45 ~~7. The ability of participating counties to provide continued~~
46 ~~funding of the program.~~
- 47 ~~8. Annual input and feedback from the county boards of supervisors~~
48 ~~receiving funds.~~
- 49 ~~9. Boat accident data for the waterways within the jurisdiction of~~
50 ~~the county.]~~

1 ~~[F.]~~ [D.] The monies distributed to a county board of supervisors
2 shall be used by the law enforcement agencies of the county solely for
3 boating law enforcement, personnel, equipment and training.>>"

4 Enroll and engross to conform
5 Amend title to conform

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